

POLITY 25 | UNION TERRITORIES

CONCEPT -> EVOLUTION -> PART VIII -> THREE LEGISLATURES -> DELHI -> PUDUCHERRY -> J&K -> ANSWER

CONTROL DATE: 7 SEPTEMBER 2026 | CORE FIRST | OPTIONAL DEPTH REMAINS SUBORDINATE

One continuous 12-stage rail. Every stage decodes legal source, institutional effect and exam limit.

1

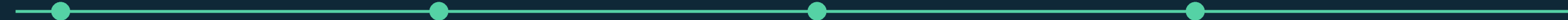
CONCEPT + CURRENT EIGHT

Union Territory = territory of India governed under Part VIII, not ordinary Part VI Statehood.
Current 8 on 7 Sep 2026: A&N, Chandigarh, DNHDD, Delhi, J&K, Ladakh, Lakshadweep and Puducherry.
Legislatures: Delhi, Puducherry, J&K. No legislature: the other five.
Answer line: common Union responsibility coexists with asymmetric local democracy.

ANSWER LINE: Common Union responsibility, different degrees of representative government.

2

EVOLUTION + ARTICLES 1-4



1874 scheduled districts -> Chief Commissioners -> 1950 Part C / Part D.
Seventh Amendment + States Reorganisation Act 1956 -> modern UT category.
Article 3 changes area, boundary, name or status; Article 4 handles Schedules by ordinary law.
Former UTs became States in 1971, 1972 and 1987; no automatic Statehood rule.
31 Oct 2019 J&K/Ladakh split; 26 Jan 2020 DNH-DD merger.

ANSWER LINE: Territorial status changes by law; no UT has an automatic Statehood timetable.

3

PART VIII + ARTICLE 246(4)

239 President through Administrator; adjoining Governor may act in separate UT capacity.
239A Fourteenth Amendment: ordinary-law legislature/CoM route for Puducherry.
239AA Delhi special NCT; 239AB Delhi breakdown; 239B Puducherry recess ordinance.
240 Presidential regulations; 241 High Courts; 242 Coorg repealed in 1956.
246(4) Parliament may legislate on any matter for territory not included in a State.

ANSWER LINE: Part VIII governs administration; Article 246(4) preserves Parliament's all-list power.

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4

ADMINISTRATOR + THREE LEGISLATURES

Title does not decide power: read Article -> Act -> rules -> judgment.
Delhi: Article 239AA constitutional Assembly.
Puducherry: Article 239A + Government of UT Act 1963 statutory Assembly.
J&K: J&K Reorganisation Act 2019; section 13 applies Article 239A.
All three have elected Councils; Parliament retains all-subject UT competence.

ANSWER LINE: Power follows the Article and Act, never the title alone.

5

ORDINANCE + REGULATION + REPUGNANCY

239B: recess + urgency + prior Presidential instructions; six weeks after reassembly.
239AB: Delhi failure of machinery, not ordinance.
240: A&N, Lakshadweep, DNHDD, Puducherry conditionally; Ladakh via section 58.
Regulation may amend applicable law and has force of an Act of Parliament.
Repugnancy rules preserve local law space but permit Presidential assent and later override.

ANSWER LINE: 239AB breakdown, 239B ordinance and 240 regulation are separate mechanisms.

6

COURTS + REPRESENTATION + LOCAL/FISCAL

Delhi own HC; J&K-Ladakh common HC; A&N Calcutta; Chandigarh Punjab and Haryana.
DNHDD Bombay; Lakshadweep Kerala; Puducherry Madras.
Lok Sabha: all UTs, current total 19. Rajya Sabha: Delhi 3, Puducherry 1, J&K 4.
Articles 243L/243ZB adapt Panchayat/Municipality Parts to UTs.
Fiscal, fund and GST design varies by territory and statute.

ANSWER LINE: UT democracy also operates through Parliament, local bodies, courts and public finance.

7

DELHI CONSTITUTIONAL TEXT

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7

DELHI CONSTITUTIONAL TEXT

69th Amendment 1991 -> Articles 239AA/AB effective 1 Feb 1992.
Assembly: State + Concurrent fields except Entries 1 public order, 2 police, 18 land and related 64, 65, 66. Parliament retains every field.
CoM <=10%; CM appointed by President; collective responsibility.
Aid/advice is ordinary rule; genuine difference may be referred exceptionally.

ANSWER LINE: Delhi combines an elected sphere with reserved national-capital fields.

8

DELHI 2018 DOCTRINE

Government of NCT of Delhi v Union of India, 4 Jul 2018.
Executive power follows legislative field; LG has no independent decision-making power.
Any matter does not mean every matter; dialogue and constitutional trust come first.
Reference to President is exceptional, reasoned and non-mechanical.
Limit: reserved fields and parliamentary supremacy remain.

ANSWER LINE: Aid and advice is the rule; routine LG substitution is constitutionally impermissible.

9

DELHI SERVICES: 2023 TO CURRENT LAW

11 May 2023: Entry 41 services within Delhi field outside reserved subjects.
Triple chain: civil servant -> minister -> Assembly -> electorate.
Act 19 of 2023: NCCSA = CM + Chief Secretary + Principal Home Secretary.
Majority recommendation; LG may return with reasons; final on persistent difference.
7 Sep 2026: Act operative; constitutional merits challenge unresolved.

ANSWER LINE: Current answer = constitutional holding + operative Act 19 + pending-challenge limit.

10

PUDUCHERRY STATUTORY MODEL

10

ANSWER LINE: Current answer = constitutional holding + operative Act 19 + pending-challenge limit.

PUDUCHERRY STATUTORY MODEL

Article 239A + 1963 Act: 30 elected + up to 3 Central nominees.
Section 18 applicable State/Concurrent fields; section 21 parliamentary priority.
Sections 44-50 advice, differences, ministers, business and Presidential control.
K. Lakshminarayanan 2018: nomination upheld; no mandatory CM concurrence;
nominees vote fully, including budget/no-confidence. 239B ordinance; 240 conditional.

ANSWER LINE: Puducherry is broad statutory self-government under continuing Union supervision.

11

J&K + LADAKH + CURRENT STATUS

J&K: sections 13/14 Assembly; section 32 excludes public order + police, not land.
Sections 35 Parliament priority, 52 ordinance, 53 CoM/LG, 73 failure, 75 common HC.
2024 election -> functioning 90-constituency elected Assembly and Council.
In Re Article 370: elections by 30 Sep 2024; Statehood earliest, no fixed date.
7 Sep 2026 J&K remains UT. Ladakh: no Assembly; section 58 regulation route.

ANSWER LINE: J&K has elected UT government; Ladakh has no Assembly; Statehood is not restored.

12

TRAPS + REFORM + ANSWER SPINE

Traps: 8 not 9; DNHDD one; 3 legislatures; 239AB != 239B != 240.
Delhi excludes 3; J&K excludes 2; Chandigarh outside 240; Ladakh via section 58.
Current Delhi answer = 2018 + May 2023 + Act 19 + pending-challenge qualification.
Reform: exact field maps, written reasons, time limits, officer-budget accountability.
Answer: define -> source -> field -> mechanism -> case/current law -> qualify -> reform.

ANSWER LINE: Write source -> field -> mechanism -> evidence -> accountability -> qualification.